IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

Civil Appeal No. 5924/2008

IN THE MATTER OF:

State of Karnataka, represented by its Secretary — Appellant

Versus

Sri Sahasra Lingeshwara Temple and others — Respondents

APPLICATION FOR IMPLEADING UNDER ORDER 1 RULE 10 OF THE CODE OF CIVIL PROCEDURE, 1908

IMPLEADING APPLICANTS

1. Sri. Marikamba Temple,
   Sirsi Taluk, Uttara Kannada District,
   represented by its President,
   Sri. Rajaram M. Hegde, aged 62 years,
   resident of Sirsi,
   Uttara Kannada, Karnataka State.

2. Sri. Madhukeshwara Temple,
   Benawari – 581 318,
   Sirsi Taluk, Uttara Kannada District,
   represented by its Chairman and
   Mukthesar, Sri T.G. Nadiger,
   Aged 75 years, resident of Sirsi,
   Uttara Kannada, Karnataka State.

3. Sri. Venkataramana temple,
   Srikshetra Manjaguni,
   Sirsi Taluk, Uttara Kannada District,
   represented by its Administrator,
   Sri. Srinivasa Bhat, aged 59 years,
   resident of Sirsi, Uttara Kannada, Karnataka State.

4. Sri. Maha Ganapathi Shankaradeva Temple,
Sirsi Town, Uttara Kannada District,
Represented by its President,
G.S. Hegde Lingadakon,
aged 66 years,
resident of Sirsi.

5. Shri Dutt Sansthan,
Pant Balekundri,
Belgaum District, represented by its
Managing Trustee
Sri. Arun Sitaram Pant Balekundri,
Aged 72 years,
r/o. Balekundri, District Belgaum.

6. Parmarth Niketan Trust,
734, Shri Hari Mandir, Angol Road,
Belgaum, represented by its
President Sri. Chaitanya Kamalakar Malapur,
Aged 52 years
R/o. Belgaum.

7. Shri Mayakka Devasthan Trust Committee,
Chinchli,
Represented by its President,
Sri. Jitendra R. Jadhav,
Aged 52 years,
S/o. Rachoji Rao.
R/o. Chinchli.

The impleading applicants above named most respectfully submit as follows:

1. All the applicants herein are Family Trusts which have been running and maintaining Family Temples which have been registered as Trusts under the provisions of the Bombay Public Trust Act, 1950 (Bombay Act No. XXIV/1950). The local areas and places where the respective temples which the applicants – registered Trusts have been maintaining were formerly in the erstwhile State of Bombay prior to the coming into force of The

States Re-organisation Act, 1956. Consequent on the re-organisation of the States under the said enactment, all the local areas where the said temples have been existing have become part of the new State of Karnataka, with effect from 1.11.1956.

2. Even as the Statement of Objects and Reasons for introducing the Karnataka Hindu Religious Institutions and Charitable Endowments Bill stated, there had been a long standing demand before the Government of the State of Karnataka for bringing in a uniform law, providing for the regulation of all the Hindu Religious Institutions and Charitable Endowments, in the State which were being regulated by and under different enactments in the State, such as (i) The Karnataka Hindu Religious Institutions and Charitable Endowments Act, 1997; (ii) The Madras Hindu Religious and Charitable Endowments Act, 1951; (iii) The Bombay Public Trust Act, 1950; (iv) The Hyderabad Endowments Regulation 2349F; and (v) The Coorg Temples Funds Management Act, 1950, which had application to the different local areas prior to 1.11.1956, since the same was a dire need. Besides, in its landmark judgment rendered in the case of His Holiness Shri. Swamiji of Shri. Amar Mutt and others Vs. the Commissioner, Hindu Religious and Charitable Endowments Department and others, rendered on 27.8.1979, a Constitution Bench of this Hon'ble Court was pleased to hold, in paragraph 31 of the said ruling thus:

> "…….Twenty-three years have gone by since the States Reorganisation Act was passed but unhappily, no serious effort has been made by the State legislature to introduce any legislation – apart from two abortive attempts in 1963 and 1977 – to remove the inequality between the temples and Mutts situated in the South

Kanara district and those situated in other areas of Karnataka. In equality is so clearly writ large on the face of the impugned statute in its application to the district of South Kanara only, that it is perilously ear the periphery of unconstitutionality. We have restrained ourselves from declaring the law as inapplicable to the district of South Kanara from today but we would like to make it clear that if the Karnataka legislature does not act promptly and remove the inequality arising out of the application of the Madras Act of 1951 to the District of South Kanara only, the Act will have to suffer a serious and successful challenge in the not distant future. We do hope that the Government of Karnataka will act promptly and move an appropriate legislation, say, within a year or so. A comprehensive legislation which will apply to all temples and Mutts in Karnataka, which are equally situated in the context of the levy of fee, may perhaps afford a satisfactory solution in the context of the levy of fee, may perhaps afford a satisfactory solution to the problem. This, however, is a tentative view point because we have not investigated whether the Madras Act of 1951, particularly Section 76 (1) thereof, is a piece of hostile legislation of the kind that would involve the violation of Article 14. Facts in regard thereto may have to be explored, if an dwhen occasion arises".

3. The continued operation of different enactments in the State of Karnataka, governing temples and mutts in the different parts of the State, even after 1.11.1956 having been noticed by this Hon'ble Court the observations which have been quoted supra were made by this

Hon'ble Court, it was held that a comprehensive legislation which would apply to all temples/mutts in Karnataka which are equally situated in the context of levy of fee might perhaps afford a satisfactory solution to the problem and that hostile pieces of legislation which would involve the violation of Article 14 of the Constitution of India, continue to operate might even suffer a serious and successful challenge in the not distant future from the date of the said judgment which has since been reported in 1979 (4) SCC at page 642 thereof (AIR 1980 S.C. page 1).

4. Even in the wake of the observations which have been extracted above, the State Legislature did precious little for over 17 long years from the year 1979, to bring about a uniform legislation in the State. It however casually introduced a bill which was passed by both the houses of the State Legislature and assented to by His Excellency the President of India on 25.10.2001, professedly for making "better provisions for the management and administration of the Hindu Religious Institutions and Charitable Endowments in the State of Karnataka". By a notification dated 30.4.2003, the said enactment called the Karnataka Hindu Religious Institutions and Charitable Endowments Act, 1997 was professedly brought into force, prospective from 1.5.2003 as Karnataka Act No.33/2001. In view of the relevance and importance of the said notification, in the context of the present application as also for adjudicating on the correctness of the judgment which has been appealed from the aforementioned Civil Appeal of the State of Karnataka and others, the applicants reproduce below, the said notification, which reads thus:

"NOTIFICATIONS UNDER KARNATAKA HINDU RELIGIOUS INSTITUTIONS AND CHARITABLE ENDOWMENTS ACT, 1997.

NOTIFICATION

No. RD/172/Musevi/2001, dated 30.4.2003

Karnataka Gazette, Extraordinary, No.464 dated 5.1.2003

In exercise of the powers conferred by sub-section (3) of Section 1 of the Karnataka Hindu Religious Institutions and Charitable Endowments Acts, 1997 (Karnataka Act 33/2001), the Government of Karnataka hereby appoints First May, 2003 to be the date on which all the provisions of the Act shall come into force in respect of all clauses of Hindu Religious Institutions and Charitable Endowments".

5. The Statement of Objects and Reasons for enacting the aforestated Karnataka Act No.33/2001, as published by the Government of Karnataka, is reproduced below:

"There has been before the State Government, a long standing public demand to bring about a uniform law to provide for the regulation of all Charitable Endowments and Hindu Religious Institutions in the State, which are now regulated under different enactments, having local application in different parts of the State, namely:-

(1) The Karnataka Religious and Charitable Institutions Act, 1927,
(2) The madras Hindu Religious and Charitable Endowment Act, 1951;
(3) The Bombay Public Trust Act, 1950;
(4) The Hyderabad Endowment Regulations, 2349F; and
(5) The Coorg Temple Funds Management, Act, 1956

It is therefore proposed to enact a new law to replace the several local Acts to bring about uniformity in the

matter of regulations, by law, the various charitable Endowments and Hindu Religious Institution, especially.

(1) to make the law applicable generally to all Charitable Endowments and Hindu Religious Institutions, which, on the date of commencement of the Act were managed by or receiving annuity, tasdik or other grants from the State Government, and to other Hindu Religious Institutions, which, though not under the management of the State Government, require by reason of notifying them as declared Institutions.

(2) To provide that the Charitable Institutions and trusts registered under the Karnataka Societies Registration Act, 1960 or under the Indian Trust Act, 1882 and which are not under the management of the Government shall continue 6to be autonomous;

(3) to create a Common Pool Fund out of surplus funds of the National Religious Institutions, donations etc., for the maintenance and improvement of need institutions, managed by an independent committee;

(4) to provide for the founder trustees or their lineal descents to be nominated to the managing committee as Chairman, in, keeping with the decision of the Supreme Court of India;

(5) to regulate improper alienation or disposal of property belonging to a notified or declared institution by nullifying unlawful transfers and providing for

expeditious eviction of un-authorised occupants of property belonging to such institutions; and

(6) to make certain other regulations necessary int eh local conditions, Hence the Bill".

6. The vires of the said enactment had been assailed by a large number of affected Hindu Religious Institutions and Charitable Endowments in Karnataka, on diverse grounds. It had interalia been contended in the writ petitions challenging the said enactment that the said enactment was ultra-vires the provisions of Article 13, 14, 25 and 26 etc., of the Constitution of India; and that, the same was also not in conformity with the observations and findings rendered by a Constitution Bench of this Hon'ble Court in the ruling already referred to supra as His Holiness Shri. Swamiji of Shri. Amar Mutt and others Vs. the Commissioner reported in 1979 (4) SCC at page 642. Various other contentions had also been raised, seeking a judicial declaration that the entire enactment being ultra vires the provisions of the Constitution of India, the same be declared null and void.

7. Whereas a learned single judge of the Hon'ble High Court of Karnataka who dismissed the said writ petitions had upheld the said enactment as intra-vires the provisions of the Constitution of India, by the considered judgment dated 8.9.2006 rendered by a Division Bench of the said court in W.A. No.3440/2005 and companion intra-court writ appeals, the Hon'ble High Court of Karnataka has declared and struck down the said enactment as unconstitutional. Weighty reasons have been assigned in the said judgment for rendering such a declaration. The said judgment is the subject matter of challenge in the aforementioned civil appeal of the State of Karnataka and its officers and authorities.

8. In the aforementioned civil appeal which had been registered formerly as Special Leave Petition (Civil) No. 5398/2007 that the State of Karnataka and others have filed against the aforementioned judgment of the Division Bench of the Hon'ble High Court of Karnataka, this Hon'ble Court has been pleased to grant an interim order on 2.4.2007, pending issuance of notice of the said petition on the respondents named therein.

9. Eventhough the said interim order does not bring into life the Karnataka Act No.33/2001 which has been declared ultravires, null and void, it is strange and incredible that, misconstruing the said interim order as virtually restoring the said void enactment, the State and its authorities have taken thereunder several adverse actions, against a large number of Hindu Religious and Charitable Institutions and endowments in the State, which had and have been sought to be brought within the purview of the said enactment.

10. As already stated the Karnataka Act No.33/2001 has been declared unconstitutional on 8.9.2006. The interim order of stay granted in the Special Leave Petition being on 2.4.2007, the State sought to enforce, interalia, Section 25 of the said void and dead enactment against a large number of Hindu Religious Institutions and Charitable Endowments in the State, to the total detriment and disadvantage of such Institutions and Endowments, and thus affecting and infringing their autonomy in respect of them, and also violating interalia, that fundamental rights guaranteed by Articles 14, 25 and 26 of the Constitution of India. Therefore, interlocutory applications having been filed in the said Civil Appeal this Hon'ble Court was pleased to order on I.A. No.12 therein, that the interim order dated 2.4.2007 would stand

vacated, in so far as Section 25 of the Act was concerned. Such an order has been passed on 31.7.2009. thus it is quite clear that the said void and dead provision cannot and could not be enforced in any manner, against anyone.

11. In paragraph 5.5 of the Special Leave Petition (Now registered as Civil Appeal No. 5398/2007), it has been specifically and unreservedly undertaken by the appellants, thus::

> **"5.5. It is submitted that considering the grievance urged by the respondents petitioners the State is proposing to make necessary amendment to the Act to include under the purview of the Act the Mutts, the Temples attached to Mutts, denomination temples and to include the Religious and Charitable Institutions of Jains, Buddhists and Sikhs under the perview of the Act. Hence, on this ground also the judgment of the Division Bench of the High Court of Karnataka required to be reversed by recording the submissions of the State to carry out necessary amendments to the Act".**

12. Professing to act in terms of the undertaking so candidly furnished to this Hon'ble Court, based on which undertaking this Hon'ble Court was pleased to pass the interim order dated 2.4.2007, and, before the said interim order was passed by this Hon'ble Court, the Government issued an order dated 20.1.2007 constituting a High Level Committee headed by Dr. Justice M. Rama Jois, former Chief Justice of the Hon'ble High Court of judicature, Punjab & Haryana States, for making suitable recommendations for the management of the temples Hindu Religious Institutions and Charitable Endowments in the State of

Karnataka. A true copy of the said Government Order is filed herewith as **ANNEXURE-1**.

13. Two other members were added to the said High Level Committee, by issuing yet another Government Order dated 13.4.2007, a true copy whereof is filed herewith as **ANNEXURE-2**. Sri. V.Y. Patgar who is the deponent of the affidavit accompanying this application for impleading and is also a trustee of Sri. Marikamba Temple Trust, Sirsi, Uttara Kannada District, Karnataka State was inducted into the High Level Committee by the said order dated 13.4.2007, along with a certain Sri. Madiyal – retired IPS Officer and the former Administrator of Sri. Ramachandrapura Mutt, Haniya Village, Hosanagar Taluk, Shimoga District.

14. The said Committee which held its proceedings in a transparent manner and with objectivity submitted its well-considered report to the Government on 13.9.2007, interalia, recommending to the Government that the Act would require to be suitably amended by incorporating all the provisions suggested in the said report, which is resplendent with high erudition, learning and scholarship, besides the same dwelling on and dealing with the various aspects of DHARMA which is the bedrock of Hindu theism. The report contains reference interalia to, and extracts and quotes from the Vedas, the Upanishads, the Bhagavad-Gita and the epics – Ramayana and Mahabharatha.

15. For the purpose of the present application for impleading, the recommendations made by the said High Level Committee, in so far as the same would relate to the Family Temples and Charitable Endowments are extracted below:

"Amendment of Section 1 (4)

Existing clauses (i) and (ii) providing that the Act shall not apply to a mutt or a temple attached thereto and to any Hindu Religious Institution or Charitable Endowment founded, organised, run or managed by Hindu Religious denomination shall be deleted.

Exemption: On a detailed consideration of the state of affairs of small temples. It was resolved that the Act shall not apply to family temples and family charitable endowments and to all Religious and Charitable Institutions whose gross annual income is less than Rs.2 lakhs except to the extent provided under this Act and accordingly the following new clause shall be inserted.

(i) The Act shall not apply to family temples and family charitable endowments subject to registration with the Endowment Commissioner and Charitable Institutions/temples whose gross annual income is less than Rs.2 lakhs except to the extent provided in the Act.

[1] Section 1 (4) of the Act which provides that Act shall not apply to a mutt or a temple attached thereto as also to Hindu Religious Institution found or organized or run by Hindu Religious Denominations should be deleted so that the provisions of the Act shall be made applicable to all Hindu Religious and Charitable Endowments subject to the special provisions made in respect of Mutts and Temples attached thereto and in

respect of Hindu Religious Denominations and Religious Institutions of Buddhists, Sikhs and Jains.

[2] Inclusion of certain definition:

The following definitions shall be inserted in the definition section at appropriate places.

(1) Denomination Institution: Any Hindu Religious Charitable Endowment founded or organised or run or run or managed by Hindu Religious Denomination.

(2) Mutt: means a religious institution presided over by a person whose principal duty is to engage himself in the teaching and propagation of religion, teachings and philosophy of the denomination, sect or sampradaya to which the mutt belongs and in imparting religious instruction and training and rendering spiritual service or who exercises or claims to exercise spiritual headship over a body of disciples; and includes any place or places of religious worship, instruction or training which are pertinent to the Institution including Brindavana and Padukas managed by the Mutts.

(3) Religious Institutions: Any temple or Hindu Religious Institution or Hindu Charitable Endowment founded or

organised or run or managed by a Hindu religious denomination.

(4) Family Temples: Family temple ,means any temple established and maintained exclusively by the members of any family either by themselves or by family trustees consisting of family members only.

(5) Family Charitable Endowments:
Family Charitable Endowments means any charitable institution established and maintained exclusively by the funds of a family or by the members of a family and not receiving any donation or contribution by the public in whatever form.

(6) Hindu: For the purpose of this Act, the expression Hindu shall include persons professing the Boudha, Jaina and Sikh religion and reference to Hindu Religious Institutions shall be construed accordingly".

16. Since the Government failed for years, to act on the said report, and total want of seriousness to act thereon was not only latent but even patent from the niggardliness of State which had similarly been deep slumber for over 17 long years from the date of the verdict of this Hon'ble Court in the landmark ruling hereinbefore referred to, a writ petition in public interest had been filed in the Hon'ble High Court of Karnataka, seeking a direction in the nature of a writ of mandamus, under Article 226 of the

Constitution of India, that the said report be implemented by the State. Upon service of notice in the said petition the State came forward with a statement that action had been proposed to be taken to implement the recommendations made by the High Level Committee constituted by the Government and that a bill would be introduced in the State quite callously and half-heartedly Legislation for giving effect to the said recommendations. Far from doing so, the State introduced L.C. Bill No.4/2011 called the Karnataka Hindu Religious Institutions and Charitable Endowments (Amendment) Bill 2011, without even keeping in mind (i) the observations made by a Constitution of India of this Hon'ble Court, in the case of His Holiness Shri. Swamiji of Shri. Amar Mutt and others Vs. the Commissioner, Hindu Religious and Charitable Endowments Department and others rendered on 27.8.1979, and in particular, in paragraph 31 thereof; (ii) the undertaking contained in paragraph 5.5 of the Special Leave Petition; and (iii) the recommendations made by the High Level Committee. That that is so, is not in dispute but is an admitted fact, and is even a matter of record as can be seen from the application dated 29.3.2011 filed by the State of Karnataka in which it has been admitted by it that it has excluded the Mutts and Temples attached to the Mutts from the perview of the Act; that it has similarly excluded the Jains, Sikhs and the Buddhists from the purview of the Act, that it has brought within the perview of the Act Denomination Temples; that in the place of the Prescribed Authority referred to in Section 25 of the Karnataka Act No.33/2001 it would constitute the Rajya Dharmik Parishat and Zilla Dharmik Parishaths at the State and District levels respectively; and that, for the said reason, the judgment dated 8.9.2006 impugned in the above civil appeal be allowed by setting aside the said judgment and by permitting the State of

Karnataka to go ahead with the then proposed amendment, in terms of the L.C. Bill No.4/2011.

17. Professing to “amend” the void and dead enactment viz., the Karnataka Act No.33/2001, the Karnataka Act No.17/2007 called the Karnataka Hindu Religious Institutions and Charitable Endowments (Amendment) Act, 2011 published in the Official Gazette on 4.5.2011 the inoperative, void and dead enactment viz., Karnataka Act No.33/2011 has been sought to be further amended.

18. When Section 25, as introduced by Section 17 of the Karnataka Act No.27/2011 was sought to be enforced against the applicants herein and others, certain Institutions had filed an intra-locutary application in the above civil appeal praying for staying the enforcement thereof. On the said application, this Hon’ble Court was pleased to order that the amended provision of Section 25 as introduced by Karnataka Act No.27/2011 being not a subject matter of the civil appeal, it was open to the applicants therein to seek appropriate reliefs independently. Therefore the applicants herein and the Family Trusts and Endowments which are similarly situated like them have moved the Circuit Bench of the Hon’ble High Court of Karnataka at Dharwad, which, having initially granted a stay of the enforcement of the said amendment provision of Section 25 of the Act, had later vacated the same. Aggrieved thereby, intra court appeals having been filed by them, a Division Bench of the Hon’ble High Court, has restored therein the interim order, in favour of many of the institutions, including some of the applicants herein. Evenso, seeking to cut the corners too fine, and acting with post-haste and ignoring with utter impugnity, the pendency of the abovementioned civil appeal, with the oblique motive of over-reaching of the Hon’ble High Court, and

in a camouflaged manner the Rajya Dharmik Parishath which is composed amongst others of Government Officers and bureaucrats, has passed orders seemingly under Section 25 and also Section 29 of the Act, appointing Executive Committees for several temples and administrators for other institutions, by replacing the committees of management of the respective institutions.

19. The said orders of the Government of Karnataka, issued professedly under Section 29 of the Act having also been challenged before the same court, the enforcement thereof has been stayed by a learned single judge of the Hon'ble High Court of Karnataka at its Circuit Bench, Dharwad, in the writ petitions filed before it by Sri. Dutt Sansthan Pant Balekundri, which is one of the applicants in this application.

20. In the backdrop of what has been stated above, and in view of the overt acts of the Government in seeking to interfere with affect and take away the religious autonomy and freedom that the applicants have been enjoying, they quite genuinely and honestly feel it expedient and appropriate for them to seek to be brought on record in the above mentioned civil appeal, as additional respondents therein, for supporting the respondents on record that the judgment of the Division Bench of the Hon'ble High Court which is the subject matter of the said appeals, being upheld, and for that the said civil appeals being eventually dismissed.

21. The imleading applicants being thus vitally interested in the subject matter of the aforementioned civil appeal, it is most respectfully submitted that the very nature of the reliefs sought in the civil appeal would richly justify, warrant and commend the applicants being permitted to be brought on record as additional

respondents in the appeal, so as to enable them to oppose the said appeal and support the judgment impugned in the appeal.

22. No other application for the same relief has been filed by any of the applicants herein, in this Hon'ble Court or in any other court of law, previously.

PRAYER:

23. For the foregoing reasons, the applicants most respectfully pray that this Hon'ble Court be pleased to permit the impleading applicants herein to come on record as additional respondents in the aforementioned Civil Appeal, in the interest of justice and equity.

New Delhi
Date:

Advocate for the Impleading Applicants

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

Civil Appeal No. 5924/2008

IN THE MATTER OF:

State of Karnataka represented by its Secretary — Appellants

Versus

Sri Sahasra Lingeshwara Temple and others — Respondents

AFFIDAVIT VERIFYING THE APPLICATION FOR IMPLEADING

I, Venkappa Uppa Patgar, aged 72 years, s/o. late Uppa Patgar, former Dharmadarshi of Sri. Marikamba Temple, Sirsi, Uttara Kannada District, resident of Babruvahana, Vidhyanagar, Sirsi Town – 581 402, presently at Bangalore, do hereby solemnly affirm and state on oath as follows:

1. I am a trustee and former Dharmadarshi of the 1st applicant Sri. Marikamba Temple, Sirsi, Uttara Kannada District and I am the working president of the Uttara Kannada District, Hindu Dharmik Temples, Sirsi. I am fully conversant with the facts of the case. I am authorised by all the applicants to swear to this affidavit on their behalf also, in support of the accompanying application for impleading.

2. In the said backdrop, I have filed the accompanying application praying, for being impleaded as additional respondents in the above mentioned civil appeals. The

said application has been prepared by my counsel on my instructions. I have quite carefully gone through and understood the same, and state that the said contents of of paras 1 to thereof are all true to the best of my knowledge; and that no part of it is false; and nothing material has been concealed therefrom.

3. The documents filed with the said accompanying application as Annexures-1 to are true copies of their respective originals.

Verified at Bangalore on the 6th October, 2012.

DEPONENT

No.of corrections

VERIFICATION

Solemnly affirmed and signed before me on this the 6th day of October, 2012, that the contents of this affidavit having been read over by me and admitted to be true and correct to the best of my knowledge and beliefs.

DEPONENT

Verified at Bangalore on this the 6th October 2012.

ANNEXURE-2

GOVERNMENT OF KARNATAKA

No. Kumee 34 Mudhapra 2006 (Bha)

Karnataka Government Secretariat,
M.S. Building,
Bangalore, dated 13.4.2007

ORDER OF ADDITION

The following shall be read as having been included after Sl.No.14 in the Government Order No. Kumee 34 Mudhapra 2006 (Bha) dated 20.1.2007 further, it shall be deemed that, after Sl.No.15 therein, the Commissioner for Charitable Endowments, Bangalore, as the Member Secretary, included at Sl.No.17.

15	Sri. V.Y. Pategar, Sirsi, Uttara Kannada District	Member
16	Sri. T. Madiyal, IPS (Retd), Administrator, Sri. Ramachandrapura Mutt, Hosanagar.	Member

By order, and in the name of
His Excellency the Governor of Karnataka

Sd/- G. Ramachandraiah
13.4.2007
Under Secretary to the Government,
Revenue Department (Muzrai)

TRUE COPY

Note: The names of those to whom the said order had been marked have not been shown in this true copy.

Dear Bharathiji,

The application for impleading, with the sworn affidavit and signed vakalaths of the impleading applicants are sent herewith.

Copies of the three documents (Annexures referred to in the application) are also sent herewith.

The application is in order. Please file it immediately, since the Civil Appeal is coming up for consideration on 19.10.2012. I hope, by now, you must have received the e-mail also.

A cheque for Rs.25,000/- had also been kept ready, but as desired by you, the amount will be credited to your Karnataka Bank Account here. Please to the needful urgently.